

56.	Duffy v. Hyundai Motor America 2025-01481786	Defendant Hyundai Motor America's demurrer to plaintiff Colin F. Duffy's First Amended Complaint [FAC] is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) The 5th cause of action for fraudulent inducement – concealment is sufficiently alleged. (<i>Roddenberry v. Roddenberry</i> (1996) 44 Cal.App.4th 634, 665-666 [concealment elements]; <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41 [outside of duties imposed by statute or arising out of a confidential / fiduciary relationship, a duty to disclose may arise where "the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff," or from a "preexisting relationship between the parties, such as 'between seller and buyer ... or parties entering into any kind of contractual agreement;" internal citations omitted]; Complaint, ¶¶ 7 [warranty]; ¶¶ 48-52 [concealment of material facts regarding exclusively known defects and describing same]; 54 [duty to disclose]; 50-53, 55 [scienter]; ¶¶ 56, 57 [reasonable reliance]; ¶ 59 [proximately caused damages].) Defendant's motion to strike the punitive damages allegations in the FAC is DENIED. As the 5th cause of action is sufficiently pled, it supports punitive damages allegations. (<i>Stevens v. Superior Court</i> (1986) 180 Cal.App.3d 605, 610.) Moving defendant shall file an Answer to the FAC within 10 days. The case management conference is continued to September 28, 2026 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	Plaintiffs H. Newell Williams, Jr. and Kimberly Clark-Williams' motion for leave to augment and/or amend their expert witness designation is GRANTED, on the conditions discussed below. (Code Civ. Proc., §§ 2034.610 [authorizing motion], 2034.620 [factors].) The court orders that plaintiffs are granted leave to amend their expert witness designation, to: (1) substitute James Gardner for David Spiegel; and (2) augment the subject matter of Grant Teeple's retention and testimony, as set forth in plaintiffs' amended expert designation (Garrison Decl., Ex. D). Said relief is conditioned upon: (1) plaintiffs making both Gardner and Teeple available for deposition prior to 6-5-26; and (2) plaintiffs shall be responsible for the costs of any